

possession issued April 8, 2026 is vacated. Defendant shall file and serve his answer to the complaint by May 18, 2026.

Order to Show Cause

In reviewing defendant Gallagher's motion above, the court observes that plaintiff filed a notice of errata on February 10, 2026, supplementing the complaint. There is no evidence in the court's file the notice of errata was ever served on defendants. The court, on its own motion, schedules an order to show cause hearing on **May 18, 2026 at 3:30 p.m. in Department 40** regarding setting aside the default and default judgment as to defendant Gregory Sansenbach. Plaintiff shall appear and show cause, if any, why default and default judgment as to defendant Gregory Sansenbach should not be set aside.

The clerk is directed to provide notice of this order and the order to show cause hearing on all parties.

5. M-CV-0096555 Sansom, James v. Chiang, Jennifer

Defendants are advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Demurrer to the First Amended Complaint ("FAC")

Defendants demur to the FAC in this unlawful detainer action.

The court on its own motion takes judicial notice of the complaint filed March 12, 2026 and the FAC filed April 2, 2026. Plaintiff's request for judicial notice is denied because plaintiff does not specify what documents in the case files of which the court should take judicial notice. Moreover, plaintiff is reminded that each case is determined on its own merits.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Defendants argue the FAC fails to state a cause of action for unlawful detainer because the 3-day notice to pay or quit provided as Exhibit 2 to the FAC shows service by posting but fails in the same document to show mailing. Code of Civil Procedure section 1162 permits personal service, service by substitution, or if no person may be found at the

premises then by posting and mailing. (Code Civ. Proc., § 1162, subd. (a)(1)–(3).) The initial complaint in this action provided the 3-day notice to pay or quit as Exhibit 2 with an attached proof of service showing service by posting only on March 5, 2026, which is not a permissible method of service. Plaintiff has attempted to address this issue by filing the FAC—the operative pleading—which now shows posting and mailing on March 5, 2026. However, this document remains signed under penalty of perjury on March 5, 2026—meaning that changes were made to this document after it was signed under penalty of perjury and no new signature was provided. For this reason, the proof of service attached to the 3-day notice fails to show proper service within the meaning of Code of Civil Procedure section 1162. For this reason, the demurrer is sustained.

In reviewing the FAC, the court also observes several instances where the allegations are incomplete (item 6a is blank, item 6d does not specify any changes in the monthly rental amount) and conflicting or confusing (item 8b specifies the tenancy was terminated for no-fault just cause, but the 3-day notice is for failure to pay rent). Moreover, the 3-day notice indicates rent is past-due at a rate of \$1,099 per month; however, item 6a(2) specifies a rate of \$1,095 per month. Comparing these allegations, it appears the 3-day notice may overstate the amount of rent due and, if so, would render the 3-day notice void.

Plaintiff is afforded leave to amend and shall file and serve a second amended complaint, if any, by May 18, 2026.

Motion to Strike

Defendants’ motion to strike portions of the first amended complaint is denied as moot in light of the court’s above ruling sustaining the demurrer to the first amended complaint with leave to amend.

6. S-CV-0046823 Casey, Michael P v. Patrick, Sean

Motion to Correct Clerk’s Record

Plaintiff’s motion to correct clerk’s record filed April 13, 2026 is denied without prejudice as there is no evidence in the court’s file this motion was served on defendant.

Motion to Correct Clerk’s Record

On April 21, 2026, plaintiff filed a motion to correct clerk’s record pursuant to Code of Civil Procedure section 399 and 473(d). No opposition has been filed.

Plaintiff describes the procedural history of this case, which is verified by a review of the court’s file, that while the action was initially filed in Sacramento County, it was subsequently transferred by the Sacramento County Superior Court to the Placer County Superior Court. Placer County Superior Court received the transfer on June 10, 2021, filed each individual document into its electronic case file, and issued a notice of receipt